

25STCV31438 25STCV31438

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV31438 Hearing Date: August 31, 2026 Dept: 735

Supply & Demand, Inc. v. Anthony Kaye,
et al.

Plaintiff propounded

Requests for Admission, Set One, on Defendant Yan-Lin Kaye ("Defendant"), on March 17, 2026. To the ten requests at issue,

Nos. 11-14, 16-18, and 20-22, Defendant interposed objections only. The parties met and conferred by telephone on May 4, 2026, whereby Plaintiff agreed to narrow certain defined terms. Defendant served no supplemental responses. On the same day the Opposition was due, Defendant served further responses to answer most of the requests at issue. However, Plaintiff argues in Reply that two requests remain deficient: Request No. 13, and Request No. 20.

RFA No. 13: Grant. The Court

agrees with Plaintiff that the narrowing of the terms moot Defendant's ambiguity argument and Defendant's response is not Code-complaint. As to the Code of Civil Procedure section 2033.060(g) objection, it provides: "A party requesting an admission of the genuineness of any documents shall attach copies of those documents to the requests, and shall make the original of those documents available for inspection on demand by the party to whom the requests for admission are directed." Here, there is no request for the genuineness of a document. Thus, this does not apply.

Further, the response does not fully answer the question. Code of Civil Procedure Section 2033.220(b) requires an answer to admit so much of the matter as is true, deny so much as is untrue, and specify so much as to the truth of which the responding party lacks sufficient information or knowledge. The response admits a portion of the request (by

limiting the response to “money consideration”), leaving substantial doubt as to whether the other portion of the request (“consideration” whether or not money) is true or not.

RFA No. 20: Grant.

Defendant does not explain why the request would refer to Anthony Kaye and Yan-Lin Kaye in their capacity as officers when Plaintiff has agreed it means individually. Civil Code Section 3295(c) applies to punitive damages which are not at issue. The response states that Defendant lacks the personal knowledge sufficient to respond. “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (CCP section 2033.220(c).) As Defendant fails to state a reasonable inquiry was made, the response is still not code-complaint.

Sanctions

Plaintiff requests

sanctions against Defendant and her counsel in the total sum of \$8,109. Defendant failed to address the two-month delay in serving supplemental responses and maintained her objections which were not justified. Accordingly, the Court awards \$8,109 in sanctions against only Defendant. The Court denies Defendant’s request for sanctions.

Conclusion

Defendant shall provide a Code compliant responses within 10 days. Sanctions are payable within 90 days.